When your plan says no

In 2024 about one in nine Medicare Advantage denials was appealed, and 80.7 percent of those appeals won in full or in part. Take these steps in order.

- [ ] Find four things in the denial letter: the reason, the clinical criteria it cites, the appeal deadline, and how to get the claim file. **prompt-denial.txt**
- [ ] Ask, free of charge, for the claim file, the criteria behind the decision, the clinical reasoning, and the name and specialty of each medical professional consulted. For a plan through work, cite 29 CFR 2560.503-1.
- [ ] Appeal inside the plan by the method the letter gives. Employer plans typically allow 180 days. Show how the chart meets each criterion, attach a letter of medical necessity from your doctor, and ask for review by a physician who practices in the relevant specialty. **internal-appeal.txt**
- [ ] If waiting for a standard decision would seriously jeopardize your health, ask for an expedited one.
- [ ] If the plan still says no, ask for external review. The final denial names the office, the usual deadline is four months from that denial, and an urgent review must be decided within 72 hours. **external-review.txt**
- [ ] For a drug that isn't covered, sits on a high tier or needs step therapy first, ask for a formulary exception, with a statement from your prescriber. **formulary-exception.txt**
- [ ] If you've written twice and the problem isn't fixed, complain to the regulator: your state insurance department, or the U.S. Department of Labor for a self-funded employer plan. **regulator-complaint.txt**

General information about how health care works, not medical or legal advice. Nothing here should delay care in an emergency. The letters named here are free at healthusersguide.com.